

## 24NWCV03385 24NWCV03385

County: los-angeles

Division: Civil Law and Motion

Department: R

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#15

SAIDA, ET AL. v. LOOMIS  
ARMORED US, LLC, ET AL.

CASE  
NO.: 24NWCV03385

HEARING:  
Tuesday, August 11, 2026, at 9:30 AM

Plaintiffs  
KELSY AND LAURIE SAIDA's Motion for Terminating Sanctions is DENIED.

Plaintiffs'  
Motion for Issue, Evidentiary, and Monetary Sanction is GRANTED in part.

Moving party to give notice.

Background

On September 24,  
2024, Plaintiffs KELSY SAIDA, individually and as successor in interest of the  
ESTATE OF MICHAEL SAIDA; and LAURIE SAIDA ("Plaintiffs") filed this action  
against Defendants LOOMIS ARMORED US, LLC ("Loomis" or "Defendant"); LOGAN  
CUONG NGUYEN; MERCEDES-BENZ USA, LLC; ONPOINT MOTORS LLC; and DOES 1 through  
50, inclusive.

Plaintiffs' Complaint alleges the following causes of action:

- (1) Negligence;
- (2) Strict Product Liability; and
- (3) Negligence – Product Liability

Plaintiffs allege, "On September 27, 2022, Mr. Saida was driving a Mercedes-Benz CLK350 ("CLK350") traveling southbound in the number one (1) lane on Interstate Highway 605 in Cerritos, California. Defendant Nguyen, during the course and scope of employment with Defendant Loomis and DOES 1 through 25, inclusive, was driving a large armored truck in the High Occupancy Vehicle lane adjacent to Mr. Saida. The armored truck was owned, controlled, leased, and/or maintained by Defendant Loomis and DOES 1 through 25, inclusive." (Complaint ¶ 12.)

In January of 2025, Loomis destroyed the Subject Truck and corresponding documents. On June 16, 2025, Loomis responded to Plaintiffs discovery and disclosed that the "[t]he vehicle has been salvaged since the incident and all corresponding documents destroyed." (Salessi Decl., ¶ 4, Exs. 9-11.)

On February 18, 2026, Plaintiffs filed the instant motion for sanctions.

#### Legal Standard

The Court, "after notice to any affected party...and after opportunity for hearing," may impose terminating and/or monetary sanctions for misuses of the discovery process. (CCP §2023.030(a) and (d).) Misuses of the discovery process include failing to respond or to submit to an authorized method of discovery and disobeying a court order to provide discovery. (CCP §§2023.010(d) and (g).) Destruction of evidence in response to, or in anticipation of, a discovery request is a misuse of the discovery process. (Cedars-Sinai Medical Center v. Superior Court (1998) 18 Cal.4th 1, 11.)

"Spoliation of evidence means the destruction or significant alteration of evidence or the failure to preserve evidence for another's use in

pending or future litigation. Such conduct is condemned because it 'can destroy fairness and justice, for it increases the risk of an erroneous decision on the merits of the underlying cause of action. Destroying evidence can also increase the costs of litigation as parties attempt to reconstruct the destroyed evidence or to develop other evidence, which may be less accessible, less persuasive, or both.' While there is no tort cause of action for the intentional destruction of evidence after litigation has commenced, it is a misuse of the discovery process that is subject to a broad range of punishment, including monetary, issue, evidentiary, and terminating sanctions. A terminating sanction is appropriate in the first instance without a violation of prior court orders in egregious cases of intentional spoliation of evidence." (Williams v. Russ (2008) 167 Cal.App.4th 1215, 1223 (Citations Omitted)(Emphasis Added).) "Discovery sanctions are intended to remedy discovery abuse, not to punish the offending party. Accordingly, sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct." (Id.)

## Discussion

Plaintiffs move for termination sanctions on the grounds that Loomis intentionally destroyed the Subject Truck and corresponding documents.

The Court begins with a discussion on the timeline of events leading to Loomis destroying the Subject Truck.

On September 27, 2022, decedent suffered fatal injuries after colliding with the Subject Truck. On October 1, 2022, Plaintiffs sent a "Notice to Preserve and To Not Tamper With Critical Evidence" wherein Plaintiffs specified that the Subject Truck must be preserved. (Reinecke Decl., 2, Ex. 1.) On December 27, 2022, Plaintiffs sent another preservation letter specifying that any and all vehicle data and documents for the Subject Truck must be preserved. (Reinecke Decl., ¶ 4 Ex. 3.)

On May 11, 2023, Plaintiffs' former counsel withdrew the truck preservation demand. (Opposition, Ex. K.) Defense Counsel contends he advised Loomis that based on this formal, written waiver, and with an independent CHP report verifying the truck's perfect mechanical condition, an asset hold was no longer legally required.

On August 28, 2023, Plaintiffs' current counsel sent Loomis a preservation letter indicating that, "You and your employees are hereby notified to preserve, maintain, prevent spoliation of, and not destroy any evidence and information which is related to this incident. Such evidence includes, but is not limited to: videos of the incident, dash cam footage, event data recorders from the truck involved in the incident, photographs of the scene of the incident, photographs of the vehicles involved in the incident, incident reports, documents concerning any investigation of the incident, witness statements, e mails, text messages, repair requests, repair estimates, repair invoices, etc." (Hornberger Decl., ¶ 2, Ex. 5.)

In January of 2025, Loomis destroyed the Subject Truck and all corresponding documents.

May 11, 2023, Preservation Demand Withdrawal

Loomis first contends that it was no longer necessary to hold onto the Subject Truck because former counsel withdrew the preservation demand. Loomis' point is inapposite. Indeed, even though former counsel issued a withdrawal on May 11, 2023, Plaintiffs' current counsel sent a new preservation letter on August 28, 2023. Thus, Loomis had notice that the Subject Truck needed to be preserved for over a year before Loomis destroyed the Subject Truck.

California Rules of Professional Conduct, Rule 4.2

Loomis next points to California Rules of Professional Conduct, Rule 4.2: "In representing a client, a lawyer shall not communicate directly or indirectly about the subject of the representation with a person\* the lawyer knows\* to be represented by another lawyer in the matter, unless the lawyer has the consent of the other lawyer" or the communications are otherwise authorized by law or a court order. (Cal. Rules of Prof. Conduct, rule 4.2, subds. (a), (c).)

While Plaintiffs' Counsel(s) sent the preservation letter(s) to Loomis directly, this Rule 4.2 violation does not absolve Loomis of its duty to preserve evidence. Indeed, the duty to preserve evidence arises when a party has notice that the evidence is relevant to litigation. (Victor Valley Union High School Dist. v. Superior Court (2023) 91 Cal.App.5th 1121, 1144.)

Here, Plaintiffs' August 23, 2023, preservation letter provided Loomis with notice that the Subject Truck needed to be preserved. Even if the Court disregards Plaintiffs August 23, 2023, letter, Plaintiffs Complaint provided clear notice.

Indeed, Plaintiffs alleged, "Defendant Loomis and DOES 1 through 25, inclusive, were also negligent in their operation, ownership, and maintenance of the armored truck. They negligently gave permission to Defendant Nguyen to operate the armored truck. They negligently entrusted the armored truck to Defendant Nguyen. They negligently serviced, repaired, maintained, and/or inspected the armored truck prior to the collision."  
(Complaint ¶ 25, emphasis added.)

#### Alternative Evidence

Loomis also argues that Plaintiffs suffer zero prejudice due to abundant, alternative evidence. Loomis points to a Certified CHP Level One Inspection and Video Coverage.

#### Certified CHP Level One Inspection ("Inspection")

Regarding the Inspection, Officer Horacio McComb concluded that the Subject Truck had "no violations." (Opposition, Ex. G.) However, Officer McComb's Inspection is incomplete. Officer McComb's did not review any inspections of the vehicle before the collision. (McComb Depo., at p. 26:6-11.) Officer McComb did not look up any inspections. (McComb Depo., at p. 17-19.) While Officer McComb did not find any brake or steering violations, he did not check throttle. (McComb Depo., at p. 27:2-7.) Lastly, Officer McComb was not able to retrieve an Event Data Recorder and testified that was beyond the scope of his inspection. (McComb Depo., at p. 28:11-29:3.)

Plaintiffs contend their allegations required their expert to inspect the truck, compare the truck to its maintenance history, and evaluate electronic data which were not covered by Officer McComb's Inspection.

Indeed, Officer McComb's independent Inspection may be helpful, it is not a substitute for Plaintiffs' own vehicle inspection. Indeed, the Court is unable to determine what further evidence would have been discovered by a different Inspection covering the topics outlined above.

## Video Coverage

Loomis also points to video coverage of the collision and contends that video coverage renders a physical inspection entirely cumulative. Loomis' contention is illogical. A video of the collision does not provide insight into the Subject Truck's maintenance history, does not allow Plaintiffs' expert to independently investigate the Subject Truck, nor does it allow Plaintiffs the opportunity to inspect categories absent in Officer McComb's Inspection.

## Unnecessary Destruction

Lastly, the Court notes Loomis' procedure for preserving vehicles involved in a motor vehicle accident for which there is pending litigation is have the vehicle sit forever until there is guidance the vehicle is no longer needed for an evidentiary standpoint. (Hernandez Depo., at p. 48:20-49:6.) It also does not cost Loomis anything to store the Subject Truck. (Hernandez Depo., at p. 71:4-8.

More alarming is the fact that Loomis made no effort to notify any parties to this litigation that intended to destroy the Subject Truck. (Hernandez Depo., at p. 57:9-12.)

The Court finds that Loomis intentionally destroyed the Subject Truck and that destruction severally prejudices Plaintiffs.

## Conclusion

The Court notes that sanctions imposed shall be proportional to the offending conduct. The Court is not inclined to impose terminating sanctions. Indeed, discovery sanctions are not to be used to provide a weapon for punishment, forfeiture, and the avoidance of trial on the merits. (Higginson v. Kia Motors America, Inc. (2026) 118 Cal.App.5th 316, 341.) Instead, the Court finds the following sanctions more appropriate to remedy Loomis' misconduct:

## Issue

## Sanctions

The following facts

shall be taken as established in this action (CCP § 2023.30(b).)

.

Defendant Loomis owed a duty to Michael Saida to perform proper service, repairs, maintenance, and inspection on the Loomis truck and keep the Loomis truck in a safe condition.

.

Defendant Loomis intentionally destroyed evidence by destroying the Loomis truck and associated documents despite knowing such evidence would be relevant to this lawsuit.

## Evidentiary

### Sanctions

Defendant Loomis may

not introduce evidence of the following (CCP § 2023.030(c).)

.

That Defendant Loomis appropriately serviced, repaired, maintained, and inspected the Loomis truck prior to the subject incident.

## Monetary

### Sanctions

Reasonable sanctions

are GRANTED in the total amount of \$950.00. Defendant LOOMIS ARMORED US, LLC is ORDERED to pay Moving Party and their counsel of record sanctions in the total amount of \$950.00, payable within 60 days from the date of the Court's issuance of this Order.

## CACI 204

As to a CACI 204

instruction, the Court defers imposes such a jury instruction until trial.